25STCV05135 25STCV05135

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-23

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Case Number: 25STCV05135 Hearing Date: July 23, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: July 23, 2026 TRIAL DATE: November 16, 2027

CASE: Wells Fargo Bank, National Association v. Joseph R. King, et al.

CASE NO.: 25STCV05135

MOTION FOR SUMMARY ADJUDICATION

MOVING PARTY: Plaintiff Wells Fargo Bank, National Association

RESPONDING PARTY(S): None

PROOF OF SERVICE:

.

Correct Address: Yes.

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81 days (CCP § 437c(a)(2): (1)-(2)

OK. Served electronically on February 4, 2026, for a hearing date of July 23, 2026.

CASE
HISTORY:

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02/24/25: Complaint filed.

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06/17/25: Answer filed.

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02/04/26: Motion for Summary
Adjudication filed.

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07/08/26: Reply in support of Motion
for Summary Adjudication filed, stating no opposition was received.

STATEMENT OF
MATERIAL FACTS AND/OR PROCEEDINGS:

In this breach of contract action, Plaintiff Wells Fargo Bank, National Association ("Plaintiff") alleges that it extended two (2) lines of business credit to non-party Molitor & King Inc. ("Molitor"). To induce Plaintiff to extend credit to Molitor, Defendant Joseph R King (aka Joe King aka Joseph King Sr. aka Joseph Roy King Sr. aka Joseph Roy King aka Jose R King) ("Defendant") agreed in written guaranties to pay Plaintiff for Molitor's indebtedness. Defendant breached the guaranties by failing to pay Plaintiff after Molitor defaulted on its payments.

Plaintiff filed this lawsuit against Defendant and Does 1 to 20, asserting causes of action for: (1) breach of guaranty and (2) breach of guaranty.

Plaintiff now moves for summary adjudication of those claims. No opposition has been filed.

TENTATIVE
RULING:

Plaintiff’s motion for summary adjudication is ruled upon as follows. The request for summary adjudication of the first and second causes of action for breach of guaranty is GRANTED. Plaintiff is awarded damages of $143,705.58. The request for attorney’s fees of $3,327.06 is GRANTED. The request for costs is DENIED.

Moving party to give notice, unless waived.

DISCUSSION:

Motion for Summary Adjudication

Legal Standard

“On a motion for summary judgment [or summary adjudication], the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)

“A plaintiff … has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (f)(1).) “Once the plaintiff … has met that burden, the burden shifts to the defendant … to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

Discussion

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th

811, 821.)

To prove each element of its breach of guaranty causes of action, Plaintiff submits the declaration of Anita Flannery-Brice ("Flannery-Brice"), Plaintiff's Lead Loan Workout Specialist, Vice President, and authorized custodian of records, who attests to the following facts. (Flannery-Brice Decl., ¶¶ 1, 2.) This case involves two (2) business line credit account numbers ending in 3830 and 9158. (Id. ¶¶ 9, 20.) On or about November 1, 1990, and May 1, 1991, Defendant submitted Molitor's applications for those credit accounts. (Id. ¶¶ 6, 17.) Defendant subsequently signed the applications, personally and unconditionally guaranteeing the repayment and satisfaction of all debts and obligations that would be incurred on those accounts. (Id. ¶¶ 8, 19.) Plaintiff performed all of its obligations under the business credit agreements. (Id. ¶¶ 12, 23.) However, Molitor breached the agreements by failing to make the required monthly payments, causing Plaintiff to terminate and charge off the accounts. (Id. ¶¶ 13, 14, 24, 25.) Plaintiff's records reflect that the amount due on Account 3830 is $102,243.15, and on Account 9158 is $41,462.43. (Id. ¶¶ 15, 26.) Plaintiff made demands on Defendant for payments, but Defendant did not respond to the demands. (Id. ¶¶ 16, 27.) The declarant has attached copies of original business credit applications and final account statements showing the amounts owed. (Id. Exhibits 1 to 8.)

The Court finds that through Flannery-Brice's declaration, Plaintiff has met its burden of proving each element of its breach of guaranty causes of action. Defendant has failed to meet his burden of showing a triable issue of one or more material facts exists as to those causes of action or defenses by failing to oppose the motion.

Therefore, the Court grants the request for summary adjudication and awards Plaintiff damages of $143,705.58.

Under the terms of the business credit agreements, Defendant agreed to pay all attorneys' fees and costs incurred by Plaintiff in enforcing the agreements. (See Flannery-Brice Decl., Exh. 2, left column, top of page, "Promise to Pay" section ["Customer agrees to pay Bank, when due, the total of all purchases and advances made on Customer’s account. Customer also promises to pay the total of any Finance Charges and Other Charges due on an account, as stated in this Agreement, and all costs and expenses, including any attorney’s fees, incurred in enforcing this Agreement”]; Exh. Exh. 6, p. 1, left column, top of page, “Promise to Pay” section [same].)

Plaintiff seeks an order awarding it attorney’s fees of $3,327.06 and costs of $735.40. (Declaration of Yvonne Ramirez-Browning, filed February 4, 2026 (“Ramirez-Browning Decl.”), ¶ 7.)

Plaintiff has explained the basis for the attorney’s fees. (Ramirez-Browning Decl., ¶ 6 [“Pursuant to [the rule], attorney’s fees for the amount of $3,327.06 were calculated as follows: $2,890.00, plus 1% of the excess over $100,000.00 ($437.06)”].)

However, Plaintiff has not explained how it calculated the requested costs of $735.40. Therefore, the Court is unable to find that the requested costs were “incurred in enforcing [the business credit agreements]” within the meaning of the agreements.

Therefore, the request for attorney’s fees is granted but not the request for costs.

Accordingly, Plaintiff’s motion for summary adjudication is ruled upon as follows. The request for summary adjudication of the first and second causes of action for breach of guaranty is GRANTED. Plaintiff is awarded damages of $143,705.58. The request for attorney’s fees of $3,327.06 is GRANTED. The request for costs is DENIED.

Moving party to give notice.

IT IS SO ORDERED.

Dated: July 23, 2026 ____________________________________

Rolf M. Treu

Judge
of the Superior Court

Any party may submit on the
tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.